

# Non-Circumvention & Non-Disclosure Agreement (NCND)

**Effective Date:** [[DATE]]

This Non-Circumvention & Non-Disclosure Agreement ("Agreement") is entered into by and between:

**Discloser:** FRESH GROUND, LLC ("FRESH GROUND"), [[ADDRESS]]

**Recipient:** [[BUILDER LEGAL NAME]] ("Recipient"), [[ADDRESS]]

(each a "Party," together the "Parties")

## 1. Purpose

FRESH GROUND sources teardown and redevelopment lots and introduces them to a select group of builders. In connection with this relationship, FRESH GROUND may disclose to Recipient certain confidential information, including property addresses, seller/owner identity or contact information, pricing, deal terms, and sourcing methods (collectively, "Confidential Information").

## 2. Non-Circumvention

Recipient agrees that for any property, seller, or owner introduced or identified by FRESH GROUND (a "FRESH GROUND Opportunity"), Recipient will NOT, directly or indirectly, for a period of **twenty-four (24) months** from the date of first disclosure:

- contact, negotiate with, or transact with the seller/owner outside of FRESH GROUND;
- acquire, option, or otherwise obtain rights to the property except through FRESH GROUND or with FRESH GROUND's written consent; or
- circumvent FRESH GROUND to avoid paying the assignment fee or compensation FRESH GROUND would otherwise earn on that opportunity.

This restriction does NOT apply to any property Recipient can show, by dated written record, it already knew of or was independently pursuing before FRESH GROUND's disclosure.

## 3. Non-Disclosure

Recipient will keep all Confidential Information confidential and use it solely to evaluate a FRESH GROUND Opportunity. Recipient will not disclose Confidential Information to any third party (including other wholesalers, agents, or builders) without FRESH GROUND's prior written consent.

## 4. Remedies

The Parties agree that a breach of Sections 2 or 3 causes harm difficult to quantify. If Recipient circumvents FRESH GROUND on a FRESH GROUND Opportunity, Recipient agrees to pay FRESH GROUND, as liquidated damages (not a penalty), a flat amount of **Twenty-Five Thousand Dollars (\$25,000)** per Opportunity circumvented. This is in addition to, not in place of, any other legal remedy.

## 5. Term

This Agreement remains in effect for **twenty-four (24) months** from the Effective Date and survives with respect to any FRESH GROUND Opportunity disclosed during that period, per Section 2.

## **6. Governing Law**

This Agreement is governed by the laws of the Commonwealth of Virginia, without regard to conflict-of-law principles.

## **7. No Partnership**

This Agreement does not create a partnership, joint venture, or agency relationship between the Parties.

## **Signatures**

### **FRESH GROUND, LLC**

Signature: \_\_\_\_\_ Name: **[[NAME]]** Date: \_\_\_\_\_

### **[[BUILDER LEGAL NAME]]**

Signature: \_\_\_\_\_ Name: **[[NAME]]**

Title: **[[TITLE]]** Date: \_\_\_\_\_